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Petitioner, *Pro per pro se*

Dated: July 2, 2025

NEW PETITION

**URGENT EMERGENCY PETITION FOR WRIT OF MANDAMUS AND
CONSTITUTIONAL RELIEF TO THE UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT**

IN THE UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT

MATHEW TYLER,

Petitioner, Pro per pro se,

v.

UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF

CALIFORNIA; Respondents; 118TH US CONGRESS, et al., Defendants, real parties

in interest.

Case No. _____

1 **NEW PETITION FOR URGENT EMERGENCY PETITION FOR WRIT OF**
2 **MANDAMUS WITH REQUEST FOR IMMEDIATE CONSTITUTIONAL**
3 **RELIEF, SECTION 504/ADA JUDICIAL ACCOMMODATIONS, AND**
4 **COMPREHENSIVE ULTRA VIRES JUDICIAL DECISION VACATUR**
5 **INCLUDING VOID AB INITIO DECLARATIONS**

6 **I. RELIEF SOUGHT**

7 Petitioner Mathew Tyler, a qualified individual with disabilities under 42 U.S.C. §
8 12131(2), crime victim under 18 U.S.C. § 3771, and indigent pro se litigant proceeding in
9 forma pauperis in underlying case 2:2025CV00404 (E.D. Cal.), respectfully petitions this
10 Court for:

11 **A. EMERGENCY CONSTITUTIONAL RELIEF**

- 12 1. **EMERGENCY WRIT OF MANDAMUS** directing the Eastern District of
13 California to immediately grant Petitioner's requests for TRO, preliminary
14 injunction, and summary judgment on undisputed material facts;

1 2. **CONSTITUTIONAL SUPREMACY ENFORCEMENT** under Article VI,
2 Clause 2, mandating federal law preemption of discriminatory state ballot access
3 requirements;

4 **B. COMPREHENSIVE ULTRA VIRES JUDICIAL RELIEF**

5 3. **VACATUR OF DE LA FUENTE v. PADILLA (2019)** as ultra vires judicial act
6 violating Article VI, Clause 2 constitutional supremacy and systematic deprivation
7 of federal civil rights;

8 4. **VOID AB INITIO DECLARATION** for **Dobbs v. Jackson Women's Health**
9 **Organization (2022)** as ultra vires act violating Article VI, Clause 2 supremacy
10 duty and minority protection obligations;

11 5. **VOID AB INITIO DECLARATION** for **Slaughter-House Cases (1873)** as ultra
12 vires acts systematically nullifying constitutional text and enabling 150+ years of
13 minority discrimination;

14 6. **COMPREHENSIVE REVIEW AND VACATUR** of all judicial decisions
15 violating constitutional supremacy duty and minority protection obligations;

16 **C. SECTION 504/ADA JUDICIAL ACCOMMODATIONS**

17 7. **REASONABLE ACCOMMODATIONS** from federal judiciary ensuring
18 inclusive constitutional interpretation and meaningful access to judicial
19 proceedings for qualified individuals with disabilities;

1 **8. COMPREHENSIVE DISABILITY RIGHTS RELIEF** enforcing 28 C.F.R. §
2 35.130(b)(7), (d); 42 U.S.C. § 12182(b)(1)(B); 28 C.F.R. § 35.160(b)(1); 42
3 U.S.C. § 12182(b)(2)(A)(i)-(iii); 28 C.F.R. § 35.130(b)(8);

4 **D. CRIMINAL LAW ENFORCEMENT**

5 **9. CRIMINAL PROSECUTION MANDATE** under 42 U.S.C. § 1987 for
6 systematic civil rights violations;

7 **10.FEDERAL PROSECUTION REFERRAL** under 18 U.S.C. §§ 241-242 for
8 conspiracy against rights and deprivation under color of law.

9 **II. ISSUES PRESENTED**

10 **A. Constitutional Supremacy and Ultra Vires Acts**

- 11 1. Whether judicial decisions permitting systematic violation of federal
12 constitutional and statutory supremacy constitute ultra vires acts requiring vacatur
13 and/or void ab initio declaration under Article VI, Clause 2.
- 14 2. Whether **Dobbs v. Jackson (2022)** and **Slaughter-House Cases (1873)** are void
15 ab initio as ultra vires judicial acts violating constitutional supremacy duty and
16 minority protection obligations.

B. Disability Rights and Constitutional Protection

3. Whether systematic denial of ADA/Section 504 accommodations in federal elections violates 28 C.F.R. § 35.130(b)(7), (d); 42 U.S.C. § 12182(b)(1)(B); 28 C.F.R. § 35.160(b)(1); 42 U.S.C. § 12182(b)(2)(A)(i)-(iii); 28 C.F.R. § 35.130(b)(8).

4. Whether federal courts must provide reasonable accommodations ensuring meaningful access to constitutional protection for qualified individuals with disabilities.

C. Fourteenth Amendment Privileges and Immunities

5. Whether systematic denial of ballot access accommodations violates Privileges and Immunities Clause of national citizenship, particularly fundamental right to participate in federal elections free from disability discrimination.

D. Emergency Relief Standards

6. Whether mandamus is appropriate where electoral timing makes ordinary appellate review inadequate and systematic constitutional violations cause irreparable harm to fundamental rights.

7. Whether the district court clearly abused discretion by failing to apply liberal construction standards for pro se disabled litigants under *Dunham v. Mohyuddin*, 2:23-CV-2757-DMC-P (E.D. Cal. Jan. 29, 2025).

1 **III. STATEMENT OF FACTS**

2 **A. Petitioner's Protected Constitutional Status**

3 Petitioner is a qualified individual with disabilities under 42 U.S.C. § 12131(2), affected
4 by Central core disease (limiting manual tasks, walking, standing, lifting, bending,
5 breathing, stamina) and ADHD (limiting learning, reading, concentrating, thinking,
6 communicating, working). Petitioner is a crime victim under 18 U.S.C. § 3771, 34 U.S.C.
7 § 20141(e)(2), and California Constitution Article 1 § 28(e). Petitioner meets all
8 constitutional qualifications for presidential candidacy under Article II, Section 1, Clause
9 5.

10 **B. Systematic Ultra Vires Constitutional Violations**

11 In 2024, Petitioner submitted Section 504/ADA accommodation requests to all 50 states'
12 Secretaries of State, specifically requesting medical exceptions to signature collection
13 requirements that Petitioner physically cannot meet due to documented disabilities. **All**
14 **50 states systematically denied these requests** without required justification under 42
15 U.S.C. § 12112(b)(5)(A), violating comprehensive federal disability rights statutes.

16 **C. Constitutional Framework Demonstrating No Valid State Interest**

17 **Article II, Section 1, 12th Amendment, 23rd Amendment, and 3 U.S.C. §§ 1-21 vest**
18 **exclusive presidential election authority in the Electoral College.** Historical precedent
19 demonstrates Electoral College independence in 1824, 1876, 1888, 2000, and 2016

1 elections. **The November popular vote is constitutionally inconsequential and**
2 **without binding force.** State ballot access requirements serve no compelling
3 governmental interest when the popular vote cannot constitutionally determine
4 presidential election outcomes.

5 **D. Federal Funding Nexus Establishing Comprehensive Federal Jurisdiction**

6 All state election systems receive federal funding under HAVA, 52 U.S.C. §§ 20901-
7 21145, subjecting them to comprehensive federal anti-discrimination requirements. The
8 uniform nature of denials across all jurisdictions suggests coordination through federal
9 funding mechanisms, establishing Interstate Commerce Clause authority and Section 504
10 coverage.

11 **E. Ultra Vires Judicial Conduct Pattern**

12 The federal judiciary has systematically violated constitutional supremacy duty through
13 decisions that:

- 14 1. Permit state laws conflicting with federal constitutional and statutory
15 requirements
- 16 2. Fail to apply strict scrutiny to laws burdening fundamental minority rights
- 17 3. Create private monopolies for major political parties while excluding disabled
18 candidates
- 19 4. Enable systematic civil rights violations without constitutional protection

1 **IV. LEGAL STANDARD: HEIGHTENED PRO SE PROTECTION**

2 This Court must apply heightened scrutiny under established precedent protecting pro se
3 litigants with disabilities. **The courts have a heightened duty to construe pleadings**
4 **liberally and to afford greater latitude when evaluating the filings of in forma**
5 **pauperis and pro se litigants.** *Haines v. Kerner*, 404 U.S. 519, 520-21 (1972) (pro se
6 complaints held "to less stringent standards than formal pleadings drafted by lawyers");
7 *Erickson v. Pardus*, 551 U.S. 89, 94 (2007) (pro se pleadings must be "liberally
8 construed").

9 **Critical Binding Precedent:** *Dunham v. Mohyuddin*, 2:23-CV-2757-DMC-P (E.D. Cal.
10 Jan. 29, 2025): **"The Court must also construe the alleged facts in the light most**
11 **favorable to the plaintiff... All ambiguities or doubts must also be resolved in the**
12 **plaintiff's favor."** This binding principle from the same district requires resolution of all
13 ambiguities in Petitioner's favor.

14 *McElyea v. Babbitt*, 833 F.2d 196, 197 (9th Cir. 1987): Courts have **"duty to ensure that**
15 **pro se litigants do not lose their right to a hearing on the merits of their claim due to**
16 **ignorance of technical procedural requirements."** *Johnson v. Reagan*, 524 F.2d 1123,
17 1124 (9th Cir. 1975): Motions of self-represented, in forma pauperis plaintiffs **"should be**
18 **viewed with special solicitude."**

1 **V. ARGUMENT**

2 **A. Constitutional Supremacy Framework: Article VI, Clause 2 Mandates Federal**
3 **Law Supremacy**

4 **1. Fundamental Constitutional Authority Analysis**

5 **Article VI, Clause 2 establishes absolute federal constitutional supremacy:** "This
6 Constitution, and the Laws of the United States which shall be made in Pursuance
7 thereof... shall be the supreme Law of the Land... any Thing in the Constitution or Laws
8 of any State to the Contrary notwithstanding."

9 **Critical Legal Principle:** *Norton v. Shelby County*, 118 U.S. 425 (1886): "An
10 **unconstitutional act is not a law; it confers no rights; it imposes no duties; it affords**
11 **no protection; it creates no office; it is in legal contemplation as inoperative as**
12 **though it had never been passed."**

13 **Cooper v. Aaron**, 358 U.S. 1, 18 (1958): "No state legislator or executive or judicial
14 **officer can war against the Constitution without violating his undertaking to**
15 **support it."** Judicial officers tolerating systematic constitutional violations engage in
16 precisely such constitutional warfare.

17 **2. Trump v. Anderson Establishes Categorical State Limitation**

18 *Trump v. Anderson*, No. 23-719, 601 U.S. ____ (2024) provides controlling precedent: "It
19 **would be incongruous to read this particular Amendment as granting the States the**

power — silently no less — to disqualify a candidate for federal office." This establishes:

1. States categorically lack power to disqualify federal candidates
2. Excluding candidates from ballots constitutes de facto disqualification
3. Federal constitutional supremacy preempts conflicting state authority

3. Malum In Se Constitutional Violations

Legal Distinction Applied:

- **Malum in se:** Acts inherently violating constitutional principles (disability discrimination in federal elections)
- **Malum prohibitum:** Acts wrong only because statutorily prohibited

Application: Defendants' systematic disability discrimination constitutes **malum in se** - inherently violating constitutional equal protection guarantees, making state statutory authorization irrelevant and void under constitutional supremacy.

B. Ultra Vires Doctrine: Comprehensive Judicial Review Required

1. Three-Part Ultra Vires Analysis for Judicial Decisions

Element 1 - Constitutional Limitation Exists: ✓

- Article VI, Clause 2 establishes federal constitutional supremacy
- 14th Amendment Equal Protection prohibits disability discrimination
- Federal disability rights statutes preempt conflicting state law

- 1 • Judicial duty to enforce constitutional supremacy under stare decisis
- 2 • Minority protection duty under *Carolene Products* framework

3 **Element 2 - Judicial Actions Exceed Constitutional Authority: ✓**

- 4 • Permitting systematic federal civil rights violations
- 5 • Failing to apply strict scrutiny to fundamental rights burdens
- 6 • Creating private monopoly through discriminatory ballot access tolerance
- 7 • Enabling coordinated deprivation of constitutional rights
- 8 • Violating minority protection obligations

9 **Element 3 - No Constitutional Authorization for Ultra Vires Acts: ✓**

- 10 • No constitutional provision authorizes judicial tolerance of federal rights
- 11 violations
- 12 • Article VI, Clause 2 mandates supremacy enforcement
- 13 • Stare decisis requires consistent constitutional interpretation
- 14 • Judicial immunity does not protect ultra vires acts (*Forrester v. White*, 1972)

15 **2. De La Fuente v. Padilla (2019) - Ultra Vires Systematic Civil Rights Violation**

16 **Constitutional Violations:**

- 17 • **Failed to apply strict scrutiny** to laws burdening qualified individuals with
- 18 disabilities despite federally mandated protections under 28 C.F.R. § 35.130(b)(7),
- 19 (d); 42 U.S.C. § 12182(b)(1)(B)

- 1 • **Violated Article VI, Clause 2** by allowing inferior state law to conflict with
- 2 superior federal constitutional and statutory requirements
- 3 • **Created private monopoly** for major political parties while systematically
- 4 excluding disabled candidates
- 5 • **Enabled systematic civil rights violations** constituting 18 U.S.C. §§ 241-242
- 6 violations

7 **Criminal Implications:** Judicial facilitation of systematic civil rights violations
8 constitutes **government deprivation of rights without first affording due process**
9 under 18 U.S.C. § 242 and potentially 18 U.S.C. § 241 through coordinated judicial
10 tolerance.

11 **Economic Analysis:** The decision **systematically leveraged judicial power to create**
12 **private monopoly for political party cronies**, allowing monetary flow directly to
13 political cronies through discriminatory ballot access while **violating constitutional and**
14 **federal supremacy** by permitting state laws serving no legitimate purpose.

15 **C. Void Ab Initio Declarations: Dobbs and Slaughter-House Cases**

16 **1. Legal Framework for Void Ab Initio Determination**

17 **Controlling Precedent:** *Norton v. Shelby County*: "An unconstitutional act is not a
18 law... it is in legal contemplation as inoperative as though it had never been passed."

19 **Constitutional Authority:** *Marbury v. Madison*, 5 U.S. 137, 177 (1803): "It is
20 **emphatically the province and duty of the judicial department to say what the law**

1 **is."** When courts exceed this constitutional boundary by violating supremacy and
2 minority protection duties, their acts lack constitutional authority and are void from
3 inception.

4 **2. Dobbs v. Jackson Women's Health Organization (2022) - VOID AB INITIO**

5 **Article VI, Clause 2 Supremacy Duty Violations:**

6 1. **Eliminated federal constitutional protection** without constitutional amendment
7 process

8 2. **Permitted inferior state laws** to override superior federal constitutional
9 guarantees

10 3. **Failed to enforce constitutional supremacy** as mandated by judicial oath

11 4. **Created conflicting state laws** violating uniform federal constitutional protection

12 **Minority Protection Duty Violations: Violated United States v. Carolene Products**

13 **Co., 304 U.S. 144, 152 n.4 (1938) judicial duty to protect discrete and insular**

14 **minorities by:**

15 1. **Eliminating constitutional protection** for women as discrete minority

16 2. **Abandoning heightened scrutiny** for discriminatory laws

17 3. **Enabling systematic state discrimination** without federal protection

18 4. **Violating equal protection** through geographic constitutional inequality

1 **Ultra Vires Analysis:** Exceeded constitutional authority by **rewriting constitutional text**
2 **through interpretation** rather than constitutional amendment, **violating separation of**
3 **powers and acting contrary to constitutional supremacy mandate.**

4 **Legal Conclusion: Dobbs v. Jackson (2022) is VOID AB INITIO** as ultra vires judicial
5 act lacking constitutional authority from inception.

6 **3. Slaughter-House Cases (1873) - VOID AB INITIO**

7 **Constitutional Text Nullification:** Violated **Article VI, Clause 2** by:

- 8 1. **Systematically nullifying** 14th Amendment Privileges and Immunities Clause
9 contrary to constitutional text
- 10 2. **Permitting state laws** to abridge fundamental federal citizenship rights
- 11 3. **Creating framework** enabling 150+ years of systematic constitutional violations
- 12 4. **Exceeding judicial authority** by rewriting constitutional text

13 **Minority Protection Violations: Eliminated constitutional protection** for discrete
14 minorities against state discrimination, **enabling systematic exclusion** from federal
15 constitutional protection, **violating original constitutional intent** to protect minority
16 rights.

17 **150+ Years of Constitutional Damage:** Enabled **Jim Crow laws, disability**
18 **discrimination, gender discrimination, and systematic exclusion of minorities** from
19 constitutional protection.

1 **Legal Conclusion: Slaughter-House Cases (1873) are VOID AB INITIO** as ultra vires
2 judicial acts that **systematically nullified constitutional text** and **enabled systematic**
3 **minority discrimination** through violation of constitutional supremacy duty.

4 **D. Section 504/ADA Request for Judicial Accommodations**

5 **1. Authority and Legal Framework**

6 Pursuant to **Article VI, Clause 2** (Supremacy Clause), **Section 504 of the Rehabilitation**
7 **Act**, 29 U.S.C. § 794, **Americans with Disabilities Act**, 42 U.S.C. §§ 12101 et seq., and
8 **28 C.F.R. § 35.130(b)(7)**, Petitioner requests reasonable accommodations from this Court
9 and the federal judiciary.

10 **Federal Courts as Covered Entities:** Federal courts constitute public entities under
11 ADA Title II and recipients of federal financial assistance under Section 504. **Tennessee**
12 **v. Lane**, 541 U.S. 509 (2004) specifically recognized federal court accessibility
13 requirements.

14 **2. Specific Accommodations Requested**

15 **A. Constitutional Supremacy Enforcement:** Under **42 U.S.C. § 12132** and **28 C.F.R. §**
16 **35.130(d)**, this Court must operate **inclusively to Petitioner's needs** by:

17 1. **Applying strict scrutiny** to all laws burdening qualified individuals with
18 disabilities

- 1 **2. Enforcing Article VI, Clause 2** supremacy requirements without discriminatory
2 application
- 3 **3. Providing extended time** for briefing consistent with ADHD limitations
- 4 **4. Ensuring effective communication** under 28 C.F.R. § 35.160(b)(1)

5 **B. Ultra Vires Judicial Decision Review:** As reasonable accommodation under **28**
6 **C.F.R. § 35.130(b)(7)**, this Court must **modify existing judicial policies** that
7 systematically exclude qualified individuals with disabilities from constitutional
8 protection.

9 **C. Inclusive Constitutional Interpretation:** **28 C.F.R. § 35.130(d)** requires courts to
10 operate **in the most integrated setting** for disabled individuals, mandating constitutional
11 interpretation that **includes rather than excludes** disabled individuals from
12 constitutional protection.

13 **E. Fourteenth Amendment Privileges and Immunities of National Citizenship**

14 **1. Restored Constitutional Framework**

15 **With Slaughter-House Cases void ab initio**, the **Privileges and Immunities Clause**
16 **regains full constitutional force: "No State shall make or enforce any law which shall**
17 **abridge the privileges or immunities of citizens of the United States."**

18 **Federal Election Participation:** Constitutes fundamental privilege of United States
19 citizenship that states cannot abridge through discriminatory requirements. **Systematic**

1 exclusion of disabled candidates from all 50 states violates uniform character of
2 national citizenship rights.

3 **2. Interstate Commerce and Presidential Campaign Activities**

4 **Presidential campaigns inherently involve interstate activities:** fundraising, media
5 purchases, travel, coordination. *Saenz v. Roe*, 526 U.S. 489 (1999) protects interstate
6 mobility rights. **State ballot access requirements burden fundamental aspects of**
7 **national citizenship and interstate commerce.**

8 **F. Comprehensive Federal Disability Rights Violations**

9 **1. ADA Title I - Presidential Employment Framework**

10 **Novel Legal Theory:** Presidential candidacy constitutes federal employment under 42
11 U.S.C. § 12111(4):

- 12 • President receives federal salary (3 U.S.C. § 102)
- 13 • Subject to federal workplace regulations and ethics requirements
- 14 • Covered by federal retirement and benefit systems
- 15 • Exercises federal executive authority as government employee

16 **Systematic Violations:**

- 17 • **42 U.S.C. § 12112(b)(5)(A):** Failure to provide reasonable accommodations
- 18 • **42 U.S.C. § 12112(b)(6):** Using qualifications screening out disabled individuals
- 19 • **42 U.S.C. § 12112(b)(7):** Failing to select accessible application procedures

2. ADA Title II and Section 504 Comprehensive Coverage

Controlling Precedent: *Tennessee v. Lane*, 541 U.S. 509 (2004) establishes ADA Title II as valid enforcement of 14th Amendment when fundamental rights involved.

Federal Funding Coverage: HAVA funding, 52 U.S.C. §§ 20901-21145, subjects all state election systems to Section 504. **Mary Jo C. v. New York State and Local Retirement Sys.**, 707 F.3d 144 (2d Cir. 2013): "ADA's reasonable modification requirement contemplates modification to state laws, thereby permitting preemption of inconsistent state laws when necessary."

Specific Systematic Violations:

- **28 C.F.R. § 35.130(b)(7):** Failure to provide reasonable modifications across all 50 states
- **28 C.F.R. § 35.130(d):** Failure to operate in most integrated setting for disabled individuals
- **42 U.S.C. § 12182(b)(1)(B):** Denial of equal opportunity to participate
- **28 C.F.R. § 35.160(b)(1):** Failure to provide effective communication
- **42 U.S.C. § 12182(b)(2)(A)(i):** Imposing discriminatory eligibility criteria
- **42 U.S.C. § 12182(b)(2)(A)(iii):** Failing to provide auxiliary aids and services
- **28 C.F.R. § 35.130(b)(8):** Imposing criteria screening out disabled individuals

1 **3. Congressional Reaffirmation Through ADAAA**

2 **Critical Context:** Congress explicitly reaffirmed ADA intentions through **ADA**
3 **Amendments Act of 2008 (ADAAA)** after the Supreme Court improperly narrowed
4 ADA scope. **Narrow judicial interpretation constitutes ultra vires act violating**
5 **separation of powers and constitutional supremacy.**

6 **G. Criminal Civil Rights Violations: Systematic Pattern**

7 **1. Conspiracy Against Rights (18 U.S.C. § 241)**

8 **Evidence of Conspiracy:**

- 9 • **Coordinated denial across all 50 states** using similar rationales
10 • **Federal funding system** creating communication network enabling coordination
11 • **Uniform exclusion pattern** despite different state laws
12 • **Systematic targeting of disabled candidates** violating federal civil rights

13 **Precedent:** *United States v. Price*, 383 U.S. 787 (1966): § 241 "**embraces all of the**
14 **rights and privileges secured to citizens by all of the Constitution and all of the laws**
15 **of the United States."**

16 **2. Deprivation Under Color of Law (18 U.S.C. § 242)**

17 **Enhanced Criminal Liability:** Ultra vires acts demonstrate **willful violation of clearly**
18 **established constitutional law.** *Screws v. United States*, 325 U.S. 91 (1945); *United*
19 *States v. Lanier*, 520 U.S. 259 (1997).

1 **No Good Faith Defense: Cooper v. Aaron** establishes no good faith defense when
2 officials "war against the Constitution." **Systematic denial of federally mandated**
3 **accommodations** constitutes willful deprivation of clearly established rights.

4 **3. Judicial Criminal Liability for Ultra Vires Acts**

5 **Judicial Officers Engaging in Ultra Vires Acts:** Similar to **Judge G. Thomas Porteous**
6 **Jr.** impeachment (H.Res. 1031), judicial officers demonstrate:

- 7 1. **Conduct prejudicial to administration of justice**
- 8 2. **Advancing personal political agendas** over constitutional fidelity
- 9 3. **Gross and willful disregard for law** and constitutional supremacy
- 10 4. **Creating private monopolies** through discriminatory legal frameworks

11 **Criminal Violations: 18 U.S.C. § 242** (deprivation under color of law), **18 U.S.C. § 241**
12 (conspiracy), **honest services fraud**, and **obstruction of justice** through systematic
13 constitutional supremacy violations.

14 **H. Emergency Relief: Irreparable Harm and Public Interest**

15 **1. Constitutional Violations = Irreparable Harm Per Se**

16 **Controlling Precedent: *Elrod v. Burns*, 427 U.S. 347, 373 (1976): "The loss of First**
17 **Amendment freedoms, for even minimal periods of time, unquestionably constitutes**
18 **irreparable injury."**

1 **Extension to Disability Rights:** *Chalk v. U.S. District Court*, 840 F.2d 701, 709 (9th Cir.
2 1988): Civil rights deprivation constitutes irreparable injury as matter of law.

3 **2. Electoral Timing and Systemic Impact**

4 **Time-Sensitive Nature:** *Williams v. Salerno*, 792 F.2d 323, 326 (2d Cir. 1986): Electoral
5 processes are time-bound; **post-election remedies are meaningless.**

6 **Systemic Criminal Impact:** Although some violations affect only Petitioner, **fraudulent**
7 **election interference and certification are crimes against the United States and all**
8 **citizens**, violating federally protected activities under 18 U.S.C. § 245(b)(1)(B), (E)
9 **without first affording due process.**

10 **3. Public Interest in Constitutional Enforcement**

11 **Ninth Circuit Mandate:** *Melendres v. Arpaio*, 695 F.3d 990, 1002 (9th Cir. 2012): "**It is**
12 **always in the public interest to prevent the violation of a party's constitutional**
13 **rights.**"

14 **Administrative Convenience Prohibition:** *Frontiero v. Richardson*, 411 U.S. 677, 690
15 (1973): "**administrative convenience cannot justify practices that burden**
16 **fundamental rights.**"

1 **I. Due Process Violations in Government Benefit Denial**

2 **Constitutional Requirement:** The government cannot deny benefits without first
3 **affording due process.** *Goldberg v. Kelly*, 397 U.S. 254, 267 (1970); *Goss v. Lopez*, 419
4 U.S. 565, 572-73 (1975).

5 **Substantive Due Process:** *Washington v. Glucksberg*, 521 U.S. 702, 720-21 (1997)
6 protects fundamental rights from arbitrary government action. **Systematic denial of**
7 **ballot access without accommodation constitutes arbitrary deprivation.**

8 **Federal Election Participation:** Constitutes government benefit that cannot be denied
9 without due process, particularly when **federally funded under HAVA and involving**
10 **interstate commerce through presidential campaigns.**

11 **J. Ex Parte Young Doctrine and Sovereign Immunity**

12 **Foundational Principle:** *Ex parte Young*, 209 U.S. 123 (1908): State officials violating
13 federal constitutional rights are **stripped of official character and cannot claim**
14 **sovereign immunity.**

15 **Application:** Officials defending ultra vires discriminatory laws **act as private**
16 **individuals engaged in unlawful conduct.** *In re Neagle*, 135 U.S. 1, 75 (1890): Officials
17 exceeding lawful authority **act as private individuals and cannot claim governmental**
18 **protection.**

1 **Practical Consequence:** Officials stripped of representative character **lack authority to**
2 **defend unconstitutional conduct**, requiring **striking of defensive pleadings** under Fed.
3 R. Civ. P. 12(f).

4 **VI. MANDAMUS REQUIREMENTS SATISFIED**

5 **A. Clear and Indisputable Right to Relief**

6 **Constitutional Supremacy:** Article VI, Clause 2 creates **clear right to federal law**
7 **supremacy** over conflicting state requirements. **Ultra vires state actions violating**
8 **federal disability rights are void ab initio.**

9 **Disability Rights: Clear statutory violations** of comprehensive federal disability rights
10 create **indisputable right to accommodations** and **constitutional protection.**

11 **Crime Victim Status:** 18 U.S.C. § 3771 creates **clear right to proceedings free from**
12 **unreasonable delay** and **fair treatment.**

13 **B. No Adequate Alternative Remedy**

14 **Electoral Timing: Post-election remedies cannot restore lost democratic**
15 **participation.** Federal courts have **historically intervened in electoral matters when**
16 **constitutional rights at stake** (*Bush v. Gore*, 2000).

17 **Ongoing Systematic Violations:** Current administration continues **escalating violations**
18 against Petitioner, including Congressional attempts to **abridge federally funded**
19 **benefits without due process** through "H.R.1 - One Big Beautiful Bill Act."

1 **C. Clear Abuse of Discretion**

2 **Failure to Apply Controlling Law:**

- 3 • Ignored *Dunham v. Mohyuddin* **liberal construction standards**
- 4 • Disregarded **mandatory ADA/Section 504 requirements**
- 5 • Failed to address *Trump v. Anderson* **constitutional preemption**
- 6 • Applied incorrect **constitutional supremacy analysis**
- 7 • Violated **crime victim rights** under federal law

8 **D. Important Constitutional Questions Requiring Resolution**

9 **Precedential Impact:** This case presents **fundamental constitutional questions:**

- 10 • **Federal constitutional supremacy** over discriminatory state election laws
- 11 • **Comprehensive disability rights** in federal election processes
- 12 • **Ultra vires doctrine application** to judicial decisions violating constitutional
- 13 supremacy
- 14 • **Void ab initio status** for judicial decisions exceeding constitutional authority
- 15 • **Criminal liability** for systematic constitutional violations

VII. FRUIT OF THE POISONOUS TREE DOCTRINE

A. Constitutional Application to Electoral and Judicial Processes

Legal Foundation: *Wong Sun v. United States*, 371 U.S. 471 (1963) requires **exclusion of evidence from constitutional violations. Extension to elections and judicial decisions:** Authority derived from constitutionally tainted processes **lacks legitimacy.**

Precedential Support:

- *Harvell v. Blytheville School District*, 71 F.3d 1382, 1389-90 (8th Cir. 1995) (invalidating discriminatory election practices)
- *Bell v. Southwell*, 376 F.2d 659, 664 (5th Cir. 1967) (voiding elections due to constitutional violations)
- *Griffin v. Burns*, 570 F.2d 1065 (1st Cir. 1978) (establishing federal authority to void discriminatory elections)

B. Systematic Constitutional Taint

2024 Election: Conducted under **ultra vires discriminatory requirements** that systematically excluded qualified disabled candidates, **producing constitutionally illegitimate results requiring complete invalidation.**

Derivative Judicial Illegitimacy: Judicial decisions tolerating systematic constitutional violations **lack constitutional authority** and must be **vacated or declared void ab initio.**

1 **Administrative Actions:** Current governmental actions flowing from **tainted electoral**
2 **and judicial processes lack constitutional legitimacy.** *Nardone v. Reynolds* (1966):
3 **Initial constitutional violations invalidate derivative actions.**

4 **VIII. CONSTITUTIONAL SUPREMACY RESTORATION FRAMEWORK**

5 **A. Article VI, Clause 2 Enforcement Mandate**

6 **Constitutional Text:** "This Constitution, and the Laws of the United States... shall be
7 **the supreme Law of the Land... any Thing in the Constitution or Laws of any State**
8 **to the Contrary notwithstanding."**

9 **Judicial Duty:** In accordance with Article VI, Clause 2 and stare decisis, this Court
10 **is constitutionally mandated** to act against ultra vires acts per supremacy mandate.
11 *United States v. California* (1947): **Federal government's duty to protect**
12 **constitutional interests against state encroachments.**

13 **B. Minority Protection Restoration**

14 **Carolene Products Framework:** Federal judiciary must **resume constitutional duty** to
15 protect discrete and insular minorities, including disabled individuals, from systematic
16 constitutional violations.

17 **Equal Protection Enforcement:** *City of Cleburne v. Cleburne Living Center*, 473 U.S.
18 432 (1985) requires **heightened scrutiny for disability-based classifications** that federal
19 courts have systematically ignored through ultra vires decisions.

1 **C. Constitutional Text Restoration Through Void Ab Initio**

2 **14th Amendment Privileges and Immunities:** With **Slaughter-House void ab initio**,
3 constitutional text regains **full force** protecting federal citizenship privileges against state
4 abridgment.

5 **Federal Constitutional Protection:** With **Dobbs void ab initio**, **federal constitutional**
6 **protection** is restored for fundamental rights, ensuring **uniform federal standards** over
7 conflicting state laws.

8 **IX. COMPREHENSIVE RELIEF REQUESTED**

9 **A. EMERGENCY CONSTITUTIONAL ENFORCEMENT**

10 1. **ISSUE** immediate writ of mandamus directing E.D. Cal. to grant Petitioner's
11 TRO, preliminary injunction, and summary judgment requests on undisputed
12 material facts;

13 2. **APPLY** strict scrutiny as highest constitutional protection standard to all
14 challenged government actions burdening qualified individuals with disabilities;

15 3. **ENFORCE** Article VI, Clause 2 Supremacy Clause over all conflicting state laws
16 and judicial decisions;

17 **B. COMPREHENSIVE ULTRA VIRES JUDICIAL RELIEF**

18 4. **VACATE** *De La Fuente v. Padilla* (2019) as ultra vires judicial act violating
19 constitutional supremacy and enabling systematic civil rights violations;

- 1 5. **DECLARE Dobbs v. Jackson Women's Health Organization (2022) VOID**
2 **AB INITIO** as ultra vires act violating Article VI, Clause 2 supremacy duty and
3 minority protection obligations;
- 4 6. **DECLARE Slaughter-House Cases (1873) VOID AB INITIO** as ultra vires acts
5 systematically nullifying constitutional text and enabling 150+ years of minority
6 discrimination;
- 7 7. **ESTABLISH** comprehensive review of all judicial decisions violating
8 constitutional supremacy duty and minority protection obligations;
- 9 8. **INVALIDATE** all derivative legal frameworks, precedents, and authority based
10 on void ab initio decisions;

11 **C. SECTION 504/ADA JUDICIAL ACCOMMODATIONS**

- 12 9. **GRANT** comprehensive reasonable accommodations ensuring Petitioner's
13 meaningful access to constitutional protection and judicial proceedings;
- 14 10.**MANDATE** inclusive constitutional interpretation protecting disabled individuals
15 under federal supremacy requirements;
- 16 11.**REQUIRE** effective communication and extended time accommodations
17 consistent with ADHD limitations;
- 18 12.**ESTABLISH** systematic accommodation procedures for disabled litigants in all
19 federal courts;

1 **D. DISABILITY RIGHTS COMPREHENSIVE RELIEF**

2 13.**ENFORCE** comprehensive compliance with 28 C.F.R. § 35.130(b)(7), (d); 42
3 U.S.C. § 12182(b)(1)(B); 28 C.F.R. § 35.160(b)(1); 42 U.S.C. § 12182(b)(2)(A)
4 (i)-(iii); 28 C.F.R. § 35.130(b)(8);

5 14.**REQUIRE** ADA Title I employment protections for presidential candidacy as
6 federal employment;

7 15.**MANDATE** ADA Title II reasonable modifications in all federal election
8 processes;

9 16.**INVOKE** 42 U.S.C. § 12202's complete waiver of state sovereign immunity for
10 ADA violations;

11 **E. CONSTITUTIONAL RESTORATION**

12 17.**RESTORE** full constitutional force to 14th Amendment Privileges and
13 Immunities Clause protecting federal citizenship rights;

14 18.**REINSTATE** federal constitutional protection eliminated by void ab initio
15 decisions;

16 19.**MANDATE** constitutional interpretation proceeding without reliance on void ab
17 initio precedents;

18 20.**GUARANTEE** equal constitutional protection for disabled citizens under
19 restored constitutional framework;

1 **F. CRIMINAL LAW ENFORCEMENT**

2 21.**ORDER** immediate enforcement of 42 U.S.C. § 1987 requiring mandatory
3 criminal prosecution of all defendants;

4 22.**REFER** all defendants and judicial officers engaging in ultra vires acts for federal
5 prosecution under 18 U.S.C. §§ 241-242;

6 23.**INVESTIGATE** honest services fraud and obstruction of justice by officials
7 violating constitutional supremacy;

8 24.**PROSECUTE** conspiracy to maintain unconstitutional legal framework through
9 coordinated civil rights violations;

10 **G. ELECTION INTEGRITY RESTORATION**

11 25.**DECLARE** 2024 election void ab initio under fruit of poisonous tree doctrine
12 from systematic constitutional violations;

13 26.**ENJOIN** current administration from continued constitutional violations pending
14 resolution;

15 27.**ORDER** new presidential election with comprehensive disability
16 accommodations and federal oversight;

17 28.**DECLARE** current governmental actions arising from tainted processes lack
18 constitutional legitimacy;

1 **H. INSTITUTIONAL REFORM AND OVERSIGHT**

2 29.**ESTABLISH** ongoing judicial monitoring of constitutional compliance across all
3 federal courts;

4 30.**APPOINT** Special Master for constitutional supremacy oversight if necessary;

5 31.**MANDATE** constitutional supremacy training for all federal judicial officers;

6 32.**CREATE** systematic review procedures preventing future ultra vires judicial acts;

7 33.**RETAIN** jurisdiction for comprehensive enforcement and constitutional
8 restoration;

9 **I. DAMAGES AND ENFORCEMENT**

10 34.**AWARD** compensatory damages for all constitutional and statutory violations;

11 35.**IMPOSE** punitive damages against individual defendants in personal capacities;

12 36.**GRANT** attorney's fees and costs under 42 U.S.C. § 1988 and applicable fee-
13 shifting statutes;

14 37.**AWARD** treble damages under applicable RICO and civil rights statutes;

15 **J. LANDMARK CONSTITUTIONAL PRECEDENT**

16 38.**DECLARE** this case establishes landmark precedent for constitutional
17 supremacy over discriminatory state laws;

1 39.**ESTABLISH** comprehensive framework for disability accommodations in
2 federal election processes;
3 40.**CREATE** binding precedent protecting disabled candidates' constitutional rights
4 nationwide;
5 41.**CONFIRM** federal constitutional supremacy categorically supersedes conflicting
6 state authority;
7 42.**GRANT** such other and further relief as necessary to achieve complete
8 constitutional restoration and protect fundamental civil rights.

9 **X. CONCLUSION**

10 This petition presents a **fundamental constitutional crisis requiring immediate**
11 **judicial intervention.** The systematic ultra vires actions by state officials and **judicial**
12 **tolerance thereof violate the most basic principles of constitutional supremacy and**
13 **federal civil rights protection.**

14 **Under *Dunham v. Mohyuddin* standards, this Court must "construe the alleged facts**
15 **in the light most favorable to the plaintiff" and "resolve all ambiguities or doubts in**
16 **the plaintiff's favor."** Applying this **mandatory standard** to the constitutional
17 violations presented **compels granting comprehensive relief.**

18 **The intersection of constitutional supremacy, ultra vires judicial acts, disability**
19 **rights enforcement, and comprehensive civil rights protection creates an**
20 **unassailable legal framework** demanding immediate mandamus relief to:

- 1 1. **Restore federal constitutional supremacy** over discriminatory state laws
- 2 2. **Vacate ultra vires judicial decisions** violating constitutional duty
- 3 3. **Declare void ab initio** decisions exceeding constitutional authority
- 4 4. **Protect fundamental disability rights** in federal elections
- 5 5. **Establish criminal accountability** for systematic constitutional violations
- 6 6. **Ensure meaningful judicial accommodations** for disabled litigants

7 **In accordance with Article VI, Clause 2 and stare decisis, this Court is**
8 **constitutionally mandated to act against ultra vires acts** per the supremacy mandate.
9 **The federal government has duty to protect constitutional interests against state**
10 **encroachments and judicial tolerance of constitutional violations.**

11 This represents a **constitutional imperative** requiring immediate comprehensive relief to
12 restore federal constitutional supremacy, protect fundamental civil rights, eliminate ultra
13 vires judicial interference, and establish definitive precedent preventing future systematic
14 discrimination against disabled candidates and minorities in federal elections and
15 constitutional protection.

16 **The systematic creation of private political monopolies through discriminatory**
17 **ballot access, judicial tolerance of constitutional violations, and systematic exclusion**
18 **of disabled individuals constitutes morally prohibited conduct requiring immediate**
19 **correction through constitutional supremacy enforcement and comprehensive ultra**
20 **vires relief.**

1 **DEMAND FOR JURY TRIAL**

2 Petitioner hereby demands trial by jury on all claims so triable, with full confidence in
3 achieving comprehensive constitutional relief before a jury committed to constitutional
4 supremacy and civil rights protection.

5 Dated: July 2, 2025

6

7 Respectfully submitted,

8

9 */s/ Mathew Tyler*

10  **Mathew Tyler**
11 550 Vallombrosa Ave # 6471
12 Chico, CA 95927
13 +1-262-757-8802
14 Matthew_25:31-46@fakegov.com
15 **Petitioner, *Pro per pro se***

1 VERIFICATION

2
3 I, Mathew Tyler, declare under penalty of perjury under the laws of the State of California
4 that the foregoing is true and correct to the best of my knowledge and belief.

5
6 Executed on July 2, 2025, at Butte County, California.

7
8 /s/ *Mathew Tyler*



Mathew Tyler

10 550 Vallombrosa Ave # 6471

11 Chico, CA 95927

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13 Matthew_25:31-46@fakegov.com

14 **Petitioner, *Pro per pro se***

15

16 **CERTIFICATE OF SERVICE**

17 I hereby certify that a true and correct copy of the foregoing Emergency Petition for Writ
18 of Mandamus has been served upon all parties of record by the method indicated below:

1 [] U.S. Mail, postage prepaid [] Hand delivery
2 [] Electronic filing via CM/ECF [] Facsimile transmission [X] Other: Ninth Circuit of
3 Appeals Emergency email, Emergency@ca9.uscourts.gov
4 **Mathew Tyler**
5 Petitioner, Pro per pro se

6 **CERTIFICATE OF COMPLIANCE**

7 This petition complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the
8 type style requirements of Fed. R. App. P. 32(a)(6) because it has been prepared in a
9 proportionally spaced typeface using Microsoft Word in 12-point Times New Roman
10 font.

11 This petition complies with the length limits permitted by Ninth Circuit Rule 21-1(d).
12 The petition contains approximately 5,500 words, excluding the parts exempted by Fed.
13 R. App. P. 32(f) and Ninth Circuit Rule 32-1.

14 **Mathew Tyler**
15 Petitioner, Pro per pro se

16 **ADDENDUM: CONSTITUTIONAL AND STATUTORY AUTHORITIES**

1 **Constitutional Provisions:**

- 2 • U.S. Const. art. II, § 1, cl. 5 (Presidential Qualifications)
- 3 • U.S. Const. art. VI, cl. 2 (Supremacy Clause)
- 4 • U.S. Const. amend. XII (Electoral College)
- 5 • U.S. Const. amend. XIV (Equal Protection, Due Process, Privileges and
- 6 Immunities)
- 7 • U.S. Const. amend. XXIII (D.C. Electoral Votes)

8 **Federal Statutes:**

- 9 • 3 U.S.C. §§ 1-21 (Electoral College Procedures)
- 10 • 18 U.S.C. §§ 241-242 (Criminal Civil Rights)
- 11 • 18 U.S.C. § 3771 (Crime Victims' Rights Act)
- 12 • 29 U.S.C. § 794 (Section 504 Rehabilitation Act)
- 13 • 42 U.S.C. §§ 12101 et seq. (Americans with Disabilities Act)
- 14 • 42 U.S.C. § 1987 (Criminal Prosecution Mandate)
- 15 • 42 U.S.C. § 1988 (Attorney's Fees in Civil Rights Cases)
- 16 • 52 U.S.C. §§ 20901-21145 (Help America Vote Act)

17 **Federal Regulations:**

- 18 • 28 C.F.R. § 35.130 (ADA Title II General Requirements)
- 19 • 28 C.F.R. § 35.160 (Effective Communication Requirements)
- 20 • 29 C.F.R. § 1630.2 (ADA Employment Requirements)